

HOUSE BILL 1219

By Camper

AN ACT to amend Tennessee Code Annotated, Title 49
and Title 68, relative to feminine hygiene products.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 4, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Eligible school" means a public school in this state in which any
combination of grades five through twelve (5-12) are taught; that has received
Title I schoolwide designation; and that is operated by an LEA, by this state with
public funds, or pursuant to a charter agreement, as defined in § 49-13-104; and

(2) "Feminine hygiene product" means any product designed to be used
by women with respect to menstruation, including tampons and sanitary napkins.

(b)

(1) The department of health shall establish and administer a pilot
program for the placement of hygiene vending machines in women's restrooms
or locker rooms in each eligible school selected to participate in the program that
dispenses feminine hygiene products to students at no cost to the student.

(2) The department shall select no less than two (2) eligible schools from
each grand division of this state to receive a hygiene vending machine that
dispenses feminine hygiene products to students at no cost to the student. In
selecting eligible schools to participate in the program, the department shall
prioritize and select eligible schools with the highest percentage of students who
are economically disadvantaged, as defined in § 49-3-104. The principal of each

school selected to participate in the pilot program shall determine the appropriate location or placement in the principal's school for a hygiene vending machine.

(c)

(1) The department shall supply each eligible school selected to participate in the program with a hygiene vending machine that dispenses feminine hygiene products to students at no cost to the student, as well as the feminine hygiene products required to supply each hygiene vending machine placed in the eligible school for purposes of the program.

(2) The department may work with state or local health departments, nonprofit organizations, churches, and other organizations or entities to source hygiene vending machines, as well as the feminine hygiene products required to supply hygiene vending machines, placed in eligible schools for purposes of the program, and may collect donations of funds or items to assist the department in complying with the requirements of this section.

(d) The department is encouraged to work with the governor's office of faith-based and community initiatives to maximize the resources and funding opportunities that may be available to support or expand the program.

(e) Each eligible school selected to participate in the program is encouraged to examine the LEA's coordinated school health plan in an effort to maximize the resources, education, and guidance available to support the needs of students who are enrolled in an eligible school that is participating in the program.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.